

		sources of proof, the cost of obtaining attendance of witnesses, and the availability of compulsory process for attendance of unwilling witnesses. The public interest factors include avoidance of overburdening local courts with congested calendars, protecting the interests of potential jurors so that they are not called upon to decide cases in which the local community has little concern, and weighing the competing interests of California and the alternate jurisdiction in the litigation. [Citations.] [¶] On a motion for forum non conveniens, the defendant, as the moving party, bears the burden of proof. The granting or denial of such a motion is within the trial court's discretion, and substantial deference is accorded its determination in this regard." (<i>Stangvik v. Shiley Inc.</i> (1991) 54 Cal.3d 744, 751.) Lyndell, as the moving party, argues the private and public interest factors favor Missouri because both trusts address real property located in Missouri as well as interests in a Missouri corporation. He does not, however, address the identity or location of witnesses. Similarly, he does not address the burden on the two courts. It is not enough to simply say that the dispute involves Missouri property and should, therefore, be tried in Missouri, particularly when the California Proceeding involves a trust created and administered (according to the allegations of the petition) in California. For the foregoing reasons, the court does not exercise its discretion to dismiss or stay the California Proceeding. The motion is DENIED. Petitioner is directed to give notice.
6	Anderson/Callahan; 30-2024-01389721	Motion to Be Relieved as Counsel of Record Mueller Christiansen LLP's Motion to Be Relieved as Counsel for Deena Callahan (ROA 277) is GRANTED.

		"Generally, an attorney has a right to end the attorney-client relationship, but when litigation remains pending, the court has control over such termination, in part to ensure that the client is not harmed—for example, by abandonment of counsel on the eve of trial." (<i>Flake v. Neumiller & Beardslee</i> (2017) 9 Cal.App.5th 223, 281.) This matter is currently set for trial on 10-06-26, which presents the possibility Deena Callahan may be harmed if the motion is granted. However, "[t]he determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court" (<i>Manfredi & Levine v. Superior Court</i> (1998) 66 Cal.App.4th 1128, 1133) and the court exercises its discretion to grant the motion. This case is more than two and one-half years old. The previous trial date of 06-15-26 was continued to 10-06-26 due to an earlier motion to withdraw from representation of Deena Callahan by separate counsel. (ROA 224). This motion to be relieved has been pending since May 2026. Weighing the age of the case, the earlier continuation, and the notice of this motion given to Callahan in May 2026, on the one hand, against the possible prejudice to Callahan because of her counsel's withdrawal, on the other hand, the trial date will be CONTINUED to December 8, 2026. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.